

Master Services Agreement - Southlark Analytics (Executed)

This Master Services Agreement (this "Agreement") is entered into as of September 14, 2024 (the "Effective Date") by and between Novaric Systems, Inc. ("Vendor") and Southlark Analytics ("Customer"). The parties agree as follows.

1. Definitions

"Platform" means Vendor's proprietary software-as-a-service platform and related tools. "Services" means the subscription and professional services described in an order or statement of work under this Agreement. "Documentation" means Vendor's then-current usage documentation for the Platform.

2. Services

Vendor shall provide the Services described in each mutually executed order or statement of work, in material conformance with the Documentation and with reasonable skill and care. Customer shall provide the cooperation, access, and information reasonably necessary for Vendor to perform.

3. Fees and Payment

Customer shall pay all undisputed fees within 30 days of the date of each invoice. Amounts not paid when due shall accrue interest at 1.5% per month or the maximum rate permitted by law, whichever is less. Customer is responsible for all taxes arising from its purchases under this Agreement, excluding taxes on Vendor's net income.

4. Term and Renewal

The initial term of this Agreement runs 12 months from the Effective Date, after which it extends automatically for successive periods of 24 months each unless either party delivers written notice of non-renewal at least 60 days before the end of the then-current period.

5. Termination

Customer may terminate this Agreement for convenience on 30 days' prior written notice. On such termination, Customer shall pay all fees accrued through the effective date of termination, and Vendor shall refund a prorated portion of any prepaid fees covering the period after the effective date of termination. Either party may terminate for the other's material breach not cured within 30 days of written notice.

6. Warranties

Vendor warrants that the Services shall materially conform to the Documentation for a period of 60 days following delivery. Customer's exclusive remedy for breach of this warranty is re-performance of the affected Services or, if re-performance fails, a refund of the fees paid for the affected Services. EXCEPT AS STATED IN THIS SECTION, THE SERVICES ARE PROVIDED "AS IS" AND VENDOR DISCLAIMS ALL OTHER WARRANTIES, EXPRESS OR IMPLIED.

7. Indemnification

Vendor shall defend Customer against any third-party claim alleging that the Platform, as provided by Vendor and used as permitted under this Agreement, infringes a United States patent, copyright, or trademark, and shall indemnify Customer against amounts finally awarded or agreed in settlement of such claim. Customer shall defend and indemnify Vendor against third-party claims arising from Customer's data or its use of the Services in violation of this Agreement.

8. Limitation of Liability

NEITHER PARTY'S TOTAL LIABILITY ARISING FROM OR RELATED TO THIS AGREEMENT SHALL EXCEED THE AMOUNTS PAID OR OWED BY CUSTOMER DURING THE 6 MONTHS BEFORE THE EVENT GIVING RISE TO LIABILITY, AND NEITHER PARTY IS LIABLE FOR CONSEQUENTIAL, INCIDENTAL, SPECIAL, OR INDIRECT DAMAGES. This limitation does not apply to a party's indemnification obligations for third-party intellectual property claims, breach of Section 9 (Confidentiality), Customer's payment obligations, or a party's gross negligence or willful misconduct.

9. Confidentiality

Each party shall protect the other party's Confidential Information with at least the care it uses for its own similar information, and not less than reasonable care, and shall use it only to perform under this Agreement. Confidential Information excludes information that is public through no fault of the recipient, independently developed, or rightfully received from a third party. These obligations survive for 3 years after termination, and for trade secrets, for as long as trade secret protection lasts.

10. Intellectual Property

As between the parties, Vendor owns the Platform, its background technology, and all generalized know-how and residuals. Upon

payment in full, Customer shall own the Work Product that a statement of work identifies as Customer-owned and that Vendor developed exclusively for Customer. Customer assigns to Vendor all right, title, and interest in feedback and suggestions concerning the Platform or the Services.

11. Audit

No more than once in any 12 month period, and on at least 10 business days' written notice, Customer may audit Vendor's records directly relating to the fees charged under this Agreement, at Customer's expense and during normal business hours. Audits do not include access to Vendor's systems, facilities used for other customers, or other customers' data. Delivery of Vendor's then-current SOC 2 Type II report satisfies Customer's audit rights for the applicable period.

12. Assignment

Neither party may assign this Agreement without the other party's prior written consent, except that Vendor may assign this Agreement without consent to an affiliate or in connection with a merger, acquisition, or sale of all or substantially all of its assets. Any other purported assignment is void.

13. Governing Law

This Agreement is governed by the laws of the State of Delaware, without regard to conflict of laws principles. The state and federal courts located in Delaware have exclusive jurisdiction over any dispute arising out of this Agreement, and each party consents to their jurisdiction.

14. General

Notices must be in writing and are deemed given when delivered by hand, by certified mail, or by email with confirmation of receipt, to the addresses on the signature page. This Agreement, including its orders and statements of work, is the parties' entire agreement regarding its subject matter and supersedes all prior discussions. If any provision is held unenforceable, the remainder stays in effect. Neither party is liable for delay caused by events beyond its reasonable control.

IN WITNESS WHEREOF, the parties have executed this Agreement as of September 14, 2024.

Novaric Systems, Inc.

By: R. Castellanos

Title: General Counsel

Southlark Analytics

By: F. Solberg

Title: Authorized Signatory